

STATE OF NEW YORK

761--B

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. R. CARROLL -- read once and referred to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to reducing tuition rates for certain Olympic athletes

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph h of subdivision 2 of section 355 of the educa-
2 tion law is amended by adding a new subparagraph 11 to read as follows:

3 (11) (i) For purposes of this subparagraph:

4 (A) "Team USA athlete" means any student athlete who meets the eligi-
5 bility standards defined and approved by the United States Olympic and
6 Paralympic Committee or by the national governing body for the sport in
7 which the athlete competes.

8 (B) "International athlete" means any student athlete who meets the
9 eligibility standards defined and approved by their sport's interna-
10 tional federation.

11 (ii) Notwithstanding the provisions of any other general, special or
12 local law, rule or regulation and pursuant to an appropriation and fund-
13 ing being made for such purpose, such regulations shall further provide
14 that the payment of tuition and fees by any student who is not a resi-
15 dent of New York state shall be paid at a rate or charge no greater than
16 that imposed for students who are residents of this state if such
17 student is enrolled in an institution or educational unit of the state
18 university, has been selected to be a Team USA athlete or international
19 athlete, and is training in New York State in an elite level program
20 approved by the United States Olympic and Paralympic Committee or the
21 international federation for the sport in which the athlete competes.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00386-04-5

§ 2. Subdivision 7 of section 6206 of the education law is amended by adding a new paragraph (g) to read as follows:

(g) (i) For purposes of this paragraph:

(A) "Team USA athlete" means any student athlete who meets the eligibility standards defined and approved by the United States Olympic and Paralympic Committee or by the national governing body for the sport in which the athlete competes.

(B) "International athlete" means any student athlete who meets the eligibility standards defined and approved by their sport's international federation.

(ii) Notwithstanding the provisions of any other general, special or local law, rule or regulation and pursuant to an appropriation and funding being made for such purpose, the trustees shall further provide that the payment of tuition and fees by any student who is not a resident of New York state shall be paid at a rate or charge no greater than that imposed for students who are residents of this state if such student is enrolled in an institution or educational unit of the city university of New York, has been selected to be a Team USA athlete or international athlete, and is training in New York State in an elite level program approved by the United States Olympic and Paralympic Committee or the international federation for the sport in which the athlete competes.

§ 3. This act shall take effect on the first of July next succeeding the date on which it shall have become a law.